

24STCV08934 24STCV08934

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-22

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Case Number: 24STCV08934 Hearing Date: July 22, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Gregory Fisher

, et al.;

Plaintiffs,

vs.

Delmore J. MORsette

, et al.;

Defendants.

Case No.:

24STCV08934

Hearing Date:

July 22, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) MOTION

TO COMPEL DEPOSITION APPEARANCE OF GREGORY FISHER AND FOR SANCTIONS

(2) MOTION

TO COMPEL DEPOSITION APPEARANCE OF Tracy Hill AND FOR SANCTIONS

MOVING PARTY: Defendant Delmore J. Morsette

RESPONDING

PARTY: No response

(1) Motion

to Compel Deposition Appearance of Gregory Fisher and for Sanctions.

(2) Motion

to Compel Deposition Appearance of Tracy Hill and for Sanctions.

The court considered the moving papers
filed in connection with these motions. No opposition or reply was filed.

DISCUSSION

Motion

to Compel Deposition Appearance of Gregory Fisher

Defendant Delmore

J. Morsette ("Defendant") moves the court for an order (1) compelling plaintiff
Gregory Fisher to attend deposition and (2) awarding monetary sanctions in
favor of Defendant and against plaintiff Gregory Fisher in the amount of \$495.00.

"If, after

service of a deposition notice, a party to the action or an officer, director,

managing agent, or employee of a party . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it . . . , the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) A motion under this subdivision "shall be accompanied by, ... when the deponent fails to attend the deposition ..., a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

The court denies

Defendant's motion to compel plaintiff Gregory Fisher to appear for deposition because Defendant has not filed a declaration stating that his counsel contacted plaintiff Gregory Fisher to inquire about the nonappearance. (Taouk Decl. ¶¶ 5-6.) For the same reason, the court denies Defendant's request for sanctions.

Motion to Compel Deposition Appearance of
Tracy Hill

Defendant moves

the court for an order (1) compelling plaintiff Tracy Hill to attend deposition and (2) awarding monetary sanctions in favor of Defendant and against plaintiff Tracy Hill in the amount of \$495.00.

"If, after

service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party . . . , without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it . . . , the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).) A motion under this subdivision "shall be accompanied by, ... when the deponent fails to attend the deposition ..., a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance." (Code Civ. Proc., § 2025.450, subd. (b)(2).)

The court denies

Defendant's motion to compel Plaintiff to appear for deposition because

Defendant has not filed a declaration stating that his counsel contacted plaintiff Tracy Hill to inquire about the nonappearance. (Taouk Decl. ¶¶ 5-6.) For the same reason, the court denies Defendant's request for sanctions.

ORDER

The court DENIES defendant Delmore J. Morsette's motion to compel the deposition appearance of plaintiff Gregory Fisher and for sanctions.

The court DENIES Delmore J. Morsette's motion to compel the deposition appearance of plaintiff Tracy Hill and for sanctions.

The court orders defendant Delmore J. Morsette to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 22, 2026

Robert B. Broadbelt III

Judge of the Superior Court